

JUSTIFICATION AND APPROVAL (FAR 6.3, FAR 13.501(a))
AE M&I Services for the 3rd & 4th Floor Labs. Renovation

1. **Contracting Agency and Activity.** The contracting organization responsible for this action is The General Service Administration (GSA), Public Buildings Service (PBS), National Capital Region (NCR), Office of Acquisition (OOA), Special Programs Division (SPD), FDA80 Branch. The FDA80 Branch plans to contract by means other than full and open competition. *Select one option below.*

☐ Brand Name Justification

☒ Sole Source Justification (SSJ)

If SSJ, Annotate the following: **Vendor Name: N.K. Bhandari Architecture & Engineer, P.C. (NKB) UEI: WUDXF35LUMN6**

2. **Nature of Action Being Approved & Description of Supplies or Services**

The nature of this action is to procure Architectural / Engineering (A/E), Management and Inspection (M&I) services to support the forthcoming procurement and resulting construction contract for a laboratory renovation. The existing microbiology laboratories located on the 3rd and 4th floors of the Harvey W. Wiley Federal Building are to be renovated to create a state-of-the-art open concept laboratory environment to analyze scientific and technical issues related to food safety and microbiology. The laboratories will be updated and modernized to provide a more efficient layout that will be customizable to accommodate future changes in laboratory procedures and protocols. The A/E as the original designer of record (DOR) shall support the GSA Project Manager by providing recommendations to ensure the project goals and objectives in the design bid build (DBB) Contractor's statement of work (SOW) are met. The A/E will not be tasked with making any final decisions or reviews/approvals on behalf of the federal government.

3. **Estimated Dollar Value:** The government estimate is [REDACTED] and is funded by BA80 RWA Funds.

4. **An identification of the statutory authority permitting other than full and open competition (FAR 6.303-2(b)(4))**

The statutory authority permitting other than full and open competition is 41 U.S.C. 3304(a)(1) as implemented by the Federal Acquisition Regulation (FAR) Subpart 6.302-1 entitled, Only One Responsible Source and No Other Supplies or Services Will Satisfy Agency Requirements.

5. **A statement demonstrating the unique qualifications of the proposed contractor or the nature of the action requiring the use of the authority (FAR 6.303-2(b)(5))**

NKB has been proposed to meet the authority cited as the sole source of this procurement action. NKB was utilized via a separate contract for A/E services and is the designer of record for the 3rd and 4th Floor Laboratory Renovation project. NKB is uniquely qualified to provide these services base upon the following:

- a. Has intimate knowledge of the design as they are the original designer of record (DOR). NKB created the designs, plans, design narrative, and would have the most insight regarding request for information (RFIs), questions, concerns and recommendations or substitutions from the General Contractor.
- b. A review of NKBs past performance has confirmed successful past performance on GSA projects. GSA's technical experts have determined that NKB is the most qualified to perform the required services for this project, as they are the designer of record for the project and are considered responsible. Award will be made provided that a fair and reasonable price that offers the best value to the Government can be obtained.
- c. A synopsis was issued on SAM.gov on December 18, 2024, requesting that parties express their interest in writing to the Contracting Officer. There were no responses submitted by the due date, January 2, 2025.

6. **A description of efforts made to ensure that offers including whether a notice was or will be publicized 5.202 applies (FAR 6.303-2(b)(6))**

The Office of Design and Construction (ODC) and the FDA80 Branch solicited available capabilities statements from industry for A/E M&I services through notification on SAM.gov on December 18, 2024, with a response date of January 2, 2025. Zero (0) responses were received, which determined that adequate competition for this requirement is not available.

7. **Determination by the contracting officer that the government will be fair and reasonable (FAR 6.303-2(b)(7))**

The Contracting Officer determines that the anticipated price(s) will be fair and reasonable based on the comparison of the proposed pricing to the Independent Government Estimate (IGE) and historical pricing. It is expected negotiations will result in a price which compares favorably to the IGE and previous projects for same / similar services. A price analysis will be performed, and the anticipated price will be compared to the IGE that was developed by using information from various sources, including historical prices paid by the Government for similar services. It is through these means that the anticipated cost will be considered fair and reasonable.

8. **A description of the market research conducted results or a statement of the reason market research was not conducted (FAR 6.303-2(b)(8))**

Market research was conducted by the Contracting Officer to identify capable sources and to evaluate the availability of the marketplace to meet the requirement. On December 18, 2024 a Notice of Intent to Sole Source listed under special notice number EQWPNA-25-0008 was posted on the System for Award Management (sam.gov), the government-wide point of entry.

The posting closed on January 2, 2025 with no contractors submitting capabilities statement to display interest. Based on the

results of market research, the Government determined that there are no vendors available or capable to perform the requirements outlined for this procurement.

9. **Any other facts supporting the use of other than 6.303-2(b)(9))**

It is recommended that a sole source award be made to N.K. Bhandari Architecture & Engineer, P.C (NKB). NKB is the designer of record and has a successful past performance history on various projects NCR projects. A sole source award to NKB is in the Government's best interest to successfully complete this project.

10. **A listing of any sources that expressed a written 6.303-2(b)(10))**

N.K. Bhandari Architecture & Engineer, P.C

11. **A statement of any actions the agency may take to remove or overcome any barriers to competition, if subsequent acquisitions are anticipated (FAR 6.303-2(b)(11))**

The Government will continue to conduct thorough market research to gauge the marketplace capabilities for future requirements. The Government will seek competition of future acquisitions for these services.

12. **Research to support the facts presented for the justification above**

Supporting Documentation:

- a. Acquisition Plan
- b. Market Research Report
- c. Notice of Intent – SAM special notice

13. **CERTIFICATIONS (See, FAR Part 6.304 for approval thresholds and FAR Part 6.305 for 6.305 availability of the justification)**

Technical/Requirements Personnel: I certify the requirement meets the Government's minimum need and that the facts, representations, and data included in this justification are complete and accurate.

Signature: Project Manager

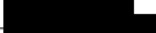
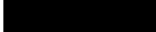


Date

Name: 

Title: Project Manager/COR

Contracting Officer: I certify that the data supporting the recommended use of other than full and open competition is accurate and complete to the best of my knowledge and belief.

Signature  
Name: 
Title: 


Date